

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard
on Wednesdays at 9:00 a.m.

Date: August 26, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	C.S. v. Doe 1, et al.	STATUS CONF.
2	K. vs. DOE 1	STATUS CONF.
3	Rose vs. 1	STATUS CONF.
4	S. vs. DOE 1	STATUS CONF.
5	Greene-Taylor vs. Kwak	TENTATIVE RULING: <u>Motion to Strike Portions of the Complaint</u> For the reasons set forth below, Defendant Kyu Dong Kwak's motion to strike the punitive damages allegations in Plaintiff Karen Greene-Taylor's Complaint is GRANTED. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.) Punitive damages are governed by Civil Code section 3294: "In an action for the breach of an obligation not arising from contract, where